and given the centrality of indigeneity to decoloniality, it is important to unpack the concept of indigeneity in further detail to bring out its assumptions and layers.

The Decolonial Evolution from ‘Indigenous Peoples’ to ‘Indigeneity’

Before I proceed to discuss the use of ‘indigenous peoples’ and ‘indigeneity’ in decolonial literature, it must be appreciated that the need for identification of indigenous peoples and making sense of indigeneity has arisen as a result of colonization, which has irreparably devastated the ways of life of the colonised. Therefore, the identification of the self in this case has been necessitated by the domination of the self by the other to whom othering was central to his worldview as opposed to being a mere part. Thanks to coloniality, othering has occupied centre stage, notwithstanding the current-day professions of universalism, globalism and cosmopolitanism, all of which rest on the colonial foundations of universalisation of Western provincial thought.

In the ensuing portions, I shall first discuss international law that deals with ‘indigenous peoples’ before discussing the position of decolonial scholarship on indigeneity. While there are at least a dozen international instruments that deal with various rights of indigenous peoples,[22] this legal prelude is limited to the assessment of whether discussions on law and policymaking in relation to ‘indigenous peoples’ are informed by coloniality and therefore, warrant a decolonial review. As part of this, I shall also examine if the law recognises the distinction between indigenous peoples and indigeneity.

Among the earliest organisations to work on issues relating to ‘indigenous peoples’ was the International Labour Organization (ILO), which adopted the Indigenous and Tribal Populations Convention in 1957.[23] Although this Convention does not contain a specific definition for indigenous peoples, Article 1 enumerates the scope of the Convention’s application as follows:

> 1. This Convention applies to:
>
> (a) members of *tribal or semi-tribal* populations in independent countries whose social and economic conditions are at a less advanced